

24STCV25369 24STCV25369

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-13

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Case Number: 24STCV25369 Hearing Date: August 13, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

GISEN C SAWAMURA

vs.

FCA US, LLC, et al.

Case

No.: 24STCV25369

Hearing Date: August 13, 2026

Plaintiff's

motion to tax costs is DENIED.

On 9/30/2024,

Plaintiff Gisen C. Sawamura (Plaintiff) filed suit against FCA US, LLC, and LAX Chrysler Dodge Jeep Ram (LAX CDJR), alleging violations of the Song-Beverly Warranty Act.

On

5/10/2026, Plaintiff moved to tax costs.

Discussion

Plaintiff

moves to tax: Line 11 in the amount of \$13,414.00; tax Line 14 in the amount of \$1,140.68; and tax Line 15 in the amount of \$150.15, for a total reduction of \$14,704.83.

As

for filing and motion fees, Plaintiff argues:

Defendant

does not distinguish between costs appropriately categorized under Line 1 (filing and motion fees) and Line 14 (fees for electronic filing or service). However, a review of Defendant's Memorandum and attached invoices show that these costs were for electronic filing. Here, the Court neither required nor ordered electronic filing. It is also evident from the invoices attached to Defendant's Memorandum that most, if not all, of these filings were done same-day, needlessly incurring rush charges that Defendant should not be entitled to recover. Vendor service fees, processing surcharges, and convenience fees are not court-imposed and are not recoverable under section 1033.5(a)(14)

(Motion,
2: 17-25.)

If

an item of cost is specifically allowable under the Code, the party challenging the cost bears the burden of showing that the cost is not reasonable or necessary. But in the case of discretionary costs which are objected to, the burden of proof lies with the party requesting the item of costs to demonstrate such costs were necessary and reasonable. (*Ladas v. Cal. State Automobile Association* (1993) 19 Cal. App. 4th 761, 774.)

Here,

Defendant submitted detailed invoices, supporting documentation, and the accompanying Declaration establishing that the challenged costs were incurred were necessary to defend the case. (Dizon Decl. ¶ 6.)

As

for deposition costs, Plaintiff argues:

Defendant's

Memorandum of Costs is accompanied by no court reporter receipts, no videographer bills, no cancellation fee statements, and no declaration of any kind. Defendant merely attaches an invoice with nothing to indicate on what date these were meant to have occurred. Code of Civil Procedure section 1033.5(a)(3) authorizes recovery of deposition costs only for costs actually and reasonably incurred. Without any sufficient documentation, it is impossible to determine what deposition this charge relates to; what specific services were rendered; or whether the amount claimed was actually incurred.

(Motion,

4: 2-8.)

Here,

Defendant submitted detailed invoices, supporting documentation, and the accompanying Declaration establishing that the challenged costs were incurred were necessary to defend the case. (Dizon Decl. ¶ 6.)

As for court

reporter fees, Plaintiff argues:

Although

Defendant attached invoices from reporting vendors, the submitted materials include charges beyond ordinary recoverable transcript costs, including expedited processing, litigation support services, electronic delivery fees, exhibit management charges, and other administrative add-ons. Court reporter fees are recoverable only to the extent they were reasonably necessary to the conduct of the litigation. CCP § 1033.5(a)(11)

(Motion,

4: 12-17.)

Here,

Defendant submitted detailed invoices, supporting documentation, and the accompanying Declaration establishing that the challenged costs were incurred were necessary to defend the case. (Dizon Decl. ¶ 6.)

As for other
costs, Plaintiff argues:

Parking,
mileage reimbursement, and meals are the personal travel and subsistence
expenses of defense counsel. These are expressly listed as non-allowable under
Code of Civil Procedure section 1033.5(b)(2), which excludes compensation for
the travel expenses of attorneys. Because the nature of these costs has not
been disclosed and no supporting documentation has been provided, Defendant has
entirely failed to meet its burden.

(Motion,
5: 9-13.)

Here,
Defendant argues that the travel-related expenses incurred by Defendant's trial
counsel were necessary. The Court agrees. As noted, Defense counsel's travel to
appear for the Final Status Conference (May 7, 2026) and Trial (May 11, 2026)
was a necessary expense as Defense counsel appeared in person for such
hearings, which is required by the Court. Similarly, the mediation for which Defendant
submitted invoices was undertaken in furtherance of resolution efforts and was
reasonable and necessary. The Court strongly encourages parties to attempt
informal resolution in all instances.

Based
on the foregoing, the Court denies Plaintiff's motion to tax costs.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must

send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please contact the court clerk at (213)
633-0517.